ORDINANCE NO. 403

AN ORDINANCE OF THE CITY OF ORANGE COVE, CALIFORNIA AMENDING THE ORANGE COVE MUNICIPAL CODE BY AMENDING CHAPTER 3.34 OF TITLE 3 BY EXPANDING THE SPECIAL PARCEL TAX FOR POLICE, PARK, AND RECREATION SERVICES AND ADJUSTING THE SPECIAL TAX RATES THERETO

The people of the City of Orange Cove do ordain as follows:

SECTION 1: The title of Chapter 3.34 of the Orange Cove Municipal Code is hereby amended as follows:

CHAPTER 3.34 – POLICE, PARK, AND RECREATION SERVICES SPECIAL PARCEL TAX

SECTION 2: Section 3.34.010 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.010 – Imposition of police, park and recreation services special parcel tax.

A special tax to fund police and recreation services and park maintenance is hereby imposed on every parcel of land in the City of Orange Cove. The tax shall be imposed each fiscal year in the amounts permitted by this chapter. The tax imposed by this chapter shall be a tax upon each parcel of property within the city and the tax shall not be measured by the value of the property.

SECTION 3: Section 3.34.020 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.020 – Maximum tax amounts.

The maximum annual amount of the tax imposed on each parcel pursuant to this chapter shall be determined as follows:

1. A tax of one hundred twenty-five dollars ($125.00) shall be imposed on each single-family residential parcel within the city. A “single-family residential parcel” shall mean a parcel zoned to accommodate single-family residences.
2. A tax of one hundred forty dollars ($140.00) shall be imposed on each multi-family residential unit within the city. A “multi-family residential unit” shall mean a building or portion of a building designed for or occupied by one family which is part of a multi-family residential unit parcel. A “multi-family residential unit parcel” shall mean a parcel zoned for a building or those portions thereof that accommodate or is intended to accommodate two or more residential units.
3. A tax of eight hundred dollars ($800.00) per acre shall be imposed on each non-residential parcel within the city. A “non-residential parcel” shall mean any parcel that is

not zoned for single-family or multi-family residences, but rather is zoned for commercial, light manufacturing, heavy manufacturing, or agricultural purposes.

4. A tax of four hundred dollars ($400.00) per acre shall be imposed on each undeveloped parcel within the city. An "undeveloped parcel" shall mean any parcel that lacks man-made structures, significant physical alterations, or functional utility connections and is vacant.
5. All taxes imposed on each parcel pursuant to this chapter shall be subject to an automatic annual inflation of three percent (3.00%).

SECTION 4: Section 3.34.030 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.030 – Exemptions.

1. Parcels owned by the city, federal or state government or any other public agency and parcels owned by any public or private entity that are specifically exempted from a parcel tax enacted as a special tax under applicable state or federal statute or regulation shall be exempt from the imposition of the special parcel tax set forth in this chapter.
2. Property owners claiming an exemption under subsection (A) above shall file proof of exemption on a form prescribed by the city manager prior to March 31 prior to the first fiscal year for which the exemption is sought.

SECTION 5: Section 3.34.040 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.040 – Administrative determinations; appeal procedures.

1. The records of the Fresno County Assessor as of March 1 of each year shall be used to determine each parcel for the calculation of the tax applicable to that parcel in the following fiscal year.
2. The city manager, or his or her authorized designee, shall administer the special parcel tax under this chapter.
3. Appeals of any determination of the city manager shall be submitted in writing to the city clerk within thirty (30) days of the date of the notice of the determination. The city council shall consider the appeal and issue a decision to the appellant in writing no later than June 30 of the fiscal year prior to the imposition of the tax.

SECTION 6: Section 3.34.050 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.050 – Accountability measures.

1. Independent Oversight Committee. The city council shall establish an independent oversight committee to review the annual report, as described below, on issues relating to the use of the special tax proceeds set forth in this chapter. The oversight committee will

independently review the use and expenditure of the tax proceeds and shall present an annual report to the city council.

a. The oversight committee shall consist of five members, each shall be a resident of the City of Orange Cove, who shall serve without compensation. The members shall be nominated by the city manager following a review of their qualifications and appointed by city council approval.
b. Members shall serve two-year terms, and each member shall serve until a successor is duly appointed and confirmed. Members are limited to a maximum of two consecutive terms. The expiration date of all terms shall be May 1. Any vacancy shall be filled for the remainder of the unexpired term. The oversight committee shall select a chair from among its members annually. The chair will serve a one-year term with the option of reappointment for an additional one-year term.
c. The oversight committee shall meet at least twice annually with additional meetings convened as necessary and as determined by the chair, and shall set an attendance policy for its members.

2. Annual Review Report. An annual review report shall be prepared by the oversight committee with support from the city manager, or his designee, setting forth the amount of revenues received under the special tax and the amount and purpose of disbursements. The purpose is to assure accountability and the proper disbursement of the proceeds of the special tax. The annual review report shall be presented to the city council not later than January 31 following each fiscal year in which the tax is collected. The annual review report shall be filed with and maintained in the city clerk's office.

SECTION 7: Section 3.34.060 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.060 – Collection with property taxes.

The special tax imposed by this chapter shall be due in the same manner, on the same dates, and subject to the same penalties and interest as established by law for other charges and taxes fixed and collected by the County of Fresno on behalf of the City of Orange Cove. The special tax imposed by this chapter, together with all penalties and interest thereon, shall constitute a lien upon the parcel upon which it is levied until it has been paid, and shall constitute a personal obligation of the owners of the parcel on the date the tax is due.

SECTION 8: Section 3.34.070 of the Orange Cove Municipal Code is hereby amended to read as follows:

3.34.070 – Term.

The special tax adopted under this chapter shall continue indefinitely, until otherwise appealed by the electorate of the City of Orange Cove.

SECTION 9: If any section or portion of this Ordinance is found to be invalid by a court of competent jurisdiction, such finding shall not affect the validity of the remainder of the Ordinance, which shall continue in full force and effect, and to that extent, the provisions of this Ordinance are severable.

SECTION 10: The City hereby determines that this Ordinance is not in-and-of-itself a "project" pursuant to the California Environmental Quality Act, Public Resources Code section 21000 et seq., including without limitation CEQA Guidelines 15378(b)(4) and 15061(b)(3), as it can be seen with certainty that there is no possibility that the adoption of the ordinance itself may have a significant effect on the environment.

SECTION 11: Following certification that the eligible voters of the City of Orange Cove has approved this Ordinance, the Mayor shall sign it attesting to its adoption by the People voting thereon at the November 3, 2026 General Municipal Election, and the City Clerk shall cause the same to be entered in the book of original ordinance ordinances of said City; and shall cause the same, or a summary thereof, to be published as required by law.

This Ordinance shall take effect only if approved by two-thirds of the eligible voters of the City of Orange Cove voting at the General Municipal Election to be held on November 3, 2026. Pursuant to California Elections Code section 9217, this Ordinance shall be deemed valid and binding and shall be considered as adopted upon the date that the vote is declared by the City Council and shall take effect ten (10) days after that date.

This Ordinance was approved and adopted by the People of the City of Orange Cove at the City's November 3, 2026 General Municipal Election.

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APPROVED

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Gilbert Garcia, Mayor

ATTEST: :

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Cynthia Cisneros, City Clerk